

Court No. - 9

Case :- WRIT - C No. - 13353 of 2016

Petitioner :- Ashu Rathi

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bharat Pratap Singh

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Huluvadi G. Ramesh,J.

Hon'ble Raghvendra Kumar,J.

Heard learned counsel for the petitioner and learned Standing Counsel for the State.

By means of present writ petition, the petitioner seeks quashing of demand notice dated 7.7.2015 issued by respondent no.5 and consequential citation dated 21.11.2015 and also to issue direction to respondent no.2 to decide the objection of the petitioner dated 21.12.2015 under clause 6.5 (d) of Electricity Supply Code, 2005 and not to take any coercive action against him.

If the petitioner has satisfied the Clause 6.5 (d) of Electricity Supply Code, 2005 then it is for the petitioner to approach the appellate authority by filing an appeal against the demand raised by the respondent.

The earlier writ petition filed by the petitioner was dismissed with a direction to avail the remedy available under Clause 6.5 of the U. P.electricity Supply Code, 2005 and this is his second writ petition.

Be that as it may, it is for the petitioner to approach the concerned Authority for redressal of his grievances.

Writ petition is, accordingly, disposed of.

Order Date :- 29.3.2016

Manish Himwan